

Court No. - 38

Case :- WRIT - C No. - 7923 of 2019

Petitioner :- Om Prakash

Respondent :- Chairman/ Managing Director Uttar Pradesh Power Corporation Limited And 3 Others

Counsel for Petitioner :- Ugrasen Kumar Pandey, Nirmal Kumar Chaturvedi

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Pankaj Srivastava

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Jayant Banerji, J.

Shri Ashutosh Dwivedi, learned counsel appearing for the respondent- Power Corporation may seek instructions in the matter.

Put up on Tuesday i.e. 12.03.2019 as fresh.

Order Date :- 7.3.2019

A. V. Singh

(Jayant Banerji, J.) (Abhinava Upadhyaya, J.)

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By means of this writ petition, the petitioner has come to this Court challenging the recovery certificate dated 31.01.2019 for a sum of Rs. 1,11,698/- plus other charges. The said recovery certificate is stated to be the compounding charge as well as the assessment of the electricity due. It is submitted that upon an allegation of electricity theft a provisional assessment was made on 24.10.2016. The petitioner furnished his objection but without considering the objection, passed an final assessment orders and straightaway recovery certificate has been issued. Learned counsel for the petitioner further submits that in the case of theft, final report has been filed, to which learned counsel appearing for the Electricity Corporation submits that this report has yet not been accepted by the Magistrate.

Learned counsel for the Electricity Corporation submits that in case the report is accepted by the Magistrate then the petitioner would be entitled to the benefits provided under Clause 8.2 (x) (h) of the Electricity Supply Code, 2005 which reads that in case of the decision of the Court that theft is not established, the charges levelled and the assessment made by the licensee against the consumer or person shall be withdrawn in writing and the connection shall be restored through original meter.

That being the provision of law, in case the final report is accepted by the concerned Magistrate, appropriate orders be passed under the aforesaid clause.

With the aforesaid observation, this writ petition is disposed of.

Order Date :- 12.3.2019

A. V. Singh

(Jayant Banerji, J.) (Abhinava Upadhyaya, J.)